

Present:
IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO.2219 of 2009.

In the matter of:

An application under section
115(1) of the Code of Civil
Procedure.

And

Moktul Hossain

...Petitioner

-Versus-

Ayesha Khatun and others

...opposite parties

Mr. Md. Mozammal Hossain,
Advocates

...For the petitioners

Mr. Sheikh Akhtarul Islam, Advocate
...For the opposite party No.1 & 3-8

Heard & judgment on:02.09.2024.

This Rule was issued calling upon the opposite party Nos.1-8 to show cause as to why the impugned judgment and order dated 18.03.2009 passed by the learned District Judge, Netrokona in Other Appeal No.49 of 2008 affirming the judgment and order dated 10.02.2008 passed by the learned Senior Assistant Judge, Barhatta, Netrokona in Partition Suit No.68 of 2003 should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.

This revision at the instance of appellant of Other Appeal No.49 of 2008 is directed against order dated 18.03.2009 passed by the learned District Judge, Netrokona rejecting the petition filed by the appellant under section 5 of the Limitation Act,1908 for condonation of delay of 131 days and dismissing above appeal on the ground of limitation.

Facts in short are that opposite parties as plaintiffs instituted Partition Suit No.68 of 2003 impleading the petitioner as defendant No.2. Defendant No.2 contested above suit by filing a written statement. In his evidence at trial above defendant sought separate saham for his land. The trial court decreed above suit but did not give separate saham for the defendant.

Being aggrieved by above judgment and decree of the trial court above defendant as appellant preferred Other Appeal No.49 of 2008 which was dismissed by the learned District Judge on the ground of the limitation of 131 days as mentioned above.

Being aggrieved by above judgment and order of the learned District Judge above appellant as petitioner moved to this court and obtained this rule.

Mr. Md. Mozammal Hossain learned Advocate for the petitioner submits that the appellant was an old man of above 70 years of age and he was suffering from several ailments including jondis. As such he could not get updated information about the above suit and his appointed advocated neither preferred any appeal against the impugned judgment and decree nor informed him about the same. For the first time the petitioner came to know about the impugned judgment and decree on 01.06.2008 causing a delay of 131 days in preferring above appeal. Learned District Judge failed to appreciate above explanation provided in the petition under section 5 of the Limitation Act and most illegally rejected above petition and dismissed the appeal which is not tenable in law.

Mr. Sheikh Akhtarul Islam learned Advocate for the opposite parties submits that the petitioner did not seek separate saham in his written statement but he merely sought saham at the time of giving evidence at trial.

I have considered the submissions of the learned Advocates for respective parties and carefully examined all materials on record.

At the very outset it must be mentioned that the impugned judgment and order passed by the learned District Judge rejecting the petition of the appellant under section 5 of the Limitation Act for condonation of delay of 131 days is a non speaking one.

It turns out from the petition filed by the appellant under section 5 of the Limitation Act that he has set out specific grounds as to causing of above delay. It has been stated that the appellant is an old man of 70 years of age and he was suffering from several ailments including serious jondis and due to above ailment he could not get updated information about the original suit nor the appointed advocate informed him about the same. He came to know about the impugned judgment and decree for the first time on 01.06.2008.

As mentioned above this is a suit for partition and the petitioner was defendant No.2 in the above suit. The learned Advocate for the opposite party frankly concedes that the defendant NO.2 has same land in the disputed khatians but he did not seek any separate sham.

It is well settled that the status of a plaintiff and a defendant in a suit for partition

is equal and same and any defendant can seek separate saham even after the pronouncement of the preliminary decree and the executing court can give him separate saham if that is possible without disturbing the preliminary decree.

On consideration of above facts and circumstances of the case and materials on record I hold that the learned District Judge committed serious illegality in rejecting the petition filed by the petitioner under section 5 of the Limitation Act, 1908 for condonation of delay of 131 days which is not tenable in law.

I find substance in this petition and the rule issued in this connection deserves to be made absolute.

In the result, the Rule is made absolute.

The impugned judgment and order dated 18.03.2009 passed by the learned District Judge, Netrokona in Other Appeal No.49 of 2008 affirming the judgment and order dated 10.02.2008 passed by the learned Senior Assistant Judge, Barhatta, Netrokona in Partition Suit No.68 of 2003 is set aside.

Delay of 131 days in preferring above appeal is condoned. The learned District Judge is directed to admit above appeal and proceed to

dispose of the same on merit in accordance with law.

Let the lower courts' records along with a copy of this judgment be transmitted down at once.

Md. Kamrul Islam
Assistant Bench Officer